and Development Council (SPDC) with the president; the replacement of the chairperson of the state/division SPDC with the chief minister of the state or region; and the replacement of the District Peace and Development Council with the General Administration Department.[11] Similar laws were introduced during the socialist and then later military regime which gave new names to existing structures and organizations. In this way, many 'new' structures in the post-2011 period are simply positions or institutions that have been rebranded, and remain steeped in the governance habits of the old regime.

The new laws passed since 2010 continue to subordinate the courts to executive and parliamentary control. The courts are the branch of government least affected by the transition process so far. The constitution and subsequent law on the judiciary does attend to details previously absent from regulation, such as the process for the selection, appointment, tenure, and removal of judges (Myint Zan 2012). Some features particular to the judiciary in Myanmar include executive control over judicial appointments, the unusual nature of the court's power to submit bills to parliament but also remain accountable to it, and the insistence that judges are free from party politics, yet they are allowed to run for elections while still in their role as a judge.[12] While several laws have been passed or amended in relation to court procedure and practices, such as the new contempt of court law (Cheesman 2015, p. 243), and the law on writ procedures of the Supreme Court (Crouch 2014),[13] these have not enhanced the independence of the courts. In fact, the introduction of the revised Contempt of Court Law is perhaps telling of the extent that it is still used as a form of punishment today. This law acts as a significant deterrent for lawyers and applicants to bring cases to court, and for the media to cover court proceedings. In one instance in 2015, the Ministry of Information brought a case for contempt against seventeen senior figures of the *Daily Eleven* news group (Kyaw Phone Kyaw 2015), which is in addition to a defamation case related to the coverage of the court trial of five other members of the same media outlet who were accused of defamation for alleging the ministry had misused government funds. The *over*-use of the Contempt of Court Law to target political opponents remains a real way that the courts do violence to the process of justice.

The main structural change in terms of the judiciary has been the introduction of the Constitutional Tribunal (Myint Zan 2012; Nardi 2010), which has added a new source of tension due to its ability to review